

MOTION FOR BELATED DETERMINATION AND SET-ASIDE UNDER AS 12.55.085(E)

IN THE COURT FOR THE STATE OF ALASKA

AT

(THE COURT THAT SENTENCED YOU IN THE ORIGINAL CRIMINAL CASE, AND ITS
LOCATION - the office of that court can confirm both)

STATE OF ALASKA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Original criminal case number:

.....

MOTION FOR BELATED DETERMINATION AND SET-ASIDE UNDER AS 12.55.085(e)

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, received a suspended imposition of sentence under AS 12.55.085 in this case, and states that discharge from probation occurred without a set-aside determination being made.

Offense in this case, worded exactly as the judgment words it:

.....

Date of the order suspending imposition of sentence, from the court record:

.....

Date probation was discharged, from the discharge order:

.....

2. This motion is filed in the original sentencing criminal case, and not as a new civil petition, because that is where the recorded rule places it.

3. Where discharge occurred without a set-aside decision, Alaska appellate law permits a belated determination focused on the circumstances that existed when probation was discharged. The defendant asks this Court to make that belated determination and to set aside the conviction under AS 12.55.085(e), on the circumstances that existed when probation was discharged.

4. Filed with this motion are: the statement addressing the exclusions in AS 12.55.085(f); the statement of compliance and rehabilitation as of discharge; the discharge order and probation-completion record; the judgment and sentencing documents; and a proposed order. This motion asks nothing that was already determined: a set-aside already determined at discharge is not re-litigated here.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally. Nothing on this page is signed or dated for the defendant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 1188 Upper Turnagain Crossing Road, Apartment 14B, Fairbanks, Alaska
99701-2214

TELEPHONE: (907) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:runtime-only:AK;set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085

STATEMENT ADDRESSING THE EXCLUSIONS IN AS 12.55.085(F)

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filed with: the Motion for Belated Determination and Set-Aside Under AS 12.55.085(e) in this packet.

The recorded rule this packet is built on states: an offense within the AS 12.55.085(f) exclusions is outside this route. This page is your own statement addressing those exclusions. The packet asserts nothing about whether your offense falls within AS 12.55.085(f); if you believe it may, stop and take this packet to a lawyer instead of filing.

Your own statement addressing the exclusions in AS 12.55.085(f) (state only what you know first-hand; nothing on these lines is written for you):

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.....
.....
.....

DATE SIGNATURE OF DEFENDANT

(You sign and date this statement personally.)

Route: obligation:runtime-only:AK:set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085

STATEMENT OF COMPLIANCE AND REHABILITATION AS OF DISCHARGE

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filed with: the Motion for Belated Determination and Set-Aside Under AS 12.55.085(e) in this packet.

The belated determination focuses on the circumstances that existed when probation was discharged. This page is your own statement of compliance and rehabilitation as of that date, and the place to list the evidence you attach - the route contract names 'evidence concerning compliance and rehabilitation as of discharge' as a component of this packet, and what to include is yours to decide from what you have.

Your own statement of compliance and rehabilitation as of the date probation was discharged:

.....
.....
.....
.....

List of the evidence you attach in support (attach copies, never originals):

.....
.....

DATE SIGNATURE OF DEFENDANT

(You sign and date this statement personally.)

Route: obligation:runtime-only:AK:set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085

COPY FOR THE PROSECUTING ATTORNEY'S OFFICE

To: the prosecuting attorney's office for the original criminal case.

Enclosed is a copy of the Motion for Belated Determination and Set-Aside Under AS 12.55.085(e) filed by Maria-Alejandra O'Shaughnessy-Whitfield in the original criminal case, with its statements and proposed order.

HOW THIS COPY MUST BE DELIVERED IS NOT STATED HERE. The committed records this packet is built from name the prosecutor as the office served and record no delivery method, and a guessed mechanic in a filing instruction is worse than none. Before you serve this copy, ask the office of the court that sentenced you how service on the prosecuting attorney's office must be made, and use that method.

NAME AND MAILING ADDRESS OF THE PROSECUTING OFFICE SERVED

(you write it here before service; the office of the sentencing court can provide it)

.....
.....

DATE OF SERVICE OF THE COPY

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and signed by the defendant when the copy actually goes out, in the manner the office of the sentencing court directs. A date or a signature written before the copy goes out would be false.

Route: obligation:runtime-only:AK;set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085

PROPOSED ORDER SETTING ASIDE THE CONVICTION UNDER AS 12.55.085(E)

IN THE COURT FOR THE STATE OF ALASKA
AT

STATE OF ALASKA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Original criminal case number:

.....

PROPOSED ORDER

This matter came before the Court on the defendant's Motion for Belated Determination and Set-Aside Under AS 12.55.085(e). The Court, having considered the motion and the circumstances that existed when probation was discharged,

ORDERS that the determination is made and the conviction is under AS 12.55.085(e).

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the motion for the Court's convenience; nothing on it is completed, decided, signed or dated by the defendant or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the motion.)

Route: obligation:runtime-only:AK:set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085

FILING INSTRUCTIONS

This packet is prepared for asking the original Alaska sentencing court for a belated set-aside determination after a suspended imposition of sentence, under AS 12.55.085(e).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT YOU DO, IN ORDER

STEP ONE. Gather the case records: the discharge order and probation-completion record, and the judgment and sentencing documents, from the office of the court that sentenced you. The belated determination focuses on the circumstances that existed when probation was discharged, so those records are the heart of the filing.

STEP TWO. Fill in every dotted blank this packet's participant instructions list, from those records. Do not guess a date, a case number or an offense wording.

STEP THREE. Write your two statements yourself: the AS 12.55.085(f) exclusions statement and the compliance-and-rehabilitation statement. Attach copies of your supporting evidence, never originals.

STEP FOUR. Sign and date the motion and each statement yourself.

STEP FIVE. File in the ORIGINAL criminal case with the court that sentenced you - never as a new civil case. This packet states no filing fee amount because no record held anywhere in the repository states one for this motion - the compiled Alaska profile says only that court motion fees may apply, which is not an amount; ask the office of the sentencing court whether one applies, and what it is.

STEP SIX. Serve the prosecuting attorney's office with a copy, using the service page, in the manner the office of the sentencing court directs.

STEP SEVEN. After the court grants the motion, obtain the court's certificate of set-aside from the court, and provide copies to the Alaska Department of Public Safety and to the clerk. The compiled Alaska profile, named as a required source for this route by the route obligation census, records this in terms: the court issues a certificate that the person can provide to the Department of Public Safety and the clerk. The Department of Public Safety holds the criminal history record, so the certificate is how the granted set-aside reaches it.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer, if any of these is true:

- the State alleges probation violations - a contested compliance record is advocacy about the facts at discharge, not a form to fill in;
- the court previously denied set-aside relief;
- your discharge status is disputed or unclear;
- the offense may fall within the AS 12.55.085(f) exclusions;
- you want to litigate constitutional or collateral consequences beyond the statutory set-aside;
- any immigration question is involved.

WHAT A SET-ASIDE IS, AND IS NOT

A set-aside does not physically erase the historical court file. That instruction is carried from the

committed route contract this packet is built from, and this packet promises no erasure. What the repository does record is how the granted set-aside reaches the agency that holds your criminal history: the court issues a certificate, and you provide copies of it to the Alaska Department of Public Safety and to the clerk. That is STEP SEVEN above, and it is the reason the step matters - the Department of Public Safety record is what a criminal history background check draws on. This packet states no further effect on any particular background check, because the repository states none beyond that mechanic.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. It is not an official Alaska Court System form - the committed records record that none exists for a post-discharge request, which is why these pages are composed - and it is not legal advice, it is not filed for you, and it does not decide whether the court will grant the set-aside.

Route: obligation:runtime-only:AK:set-aside-after-a-suspended-imposition-of-sentence-as-12-55-085